

GENERAL POLICY ON ACADEMIC FREEDOM AND ACADEMIC RESPONSIBILITY

Academic freedom is inviolable and protected under the 1987 Philippine Constitution, Article XIV, Section 5(2), which explicitly articulates that “*academic freedom shall be enjoyed in all institutions of higher learning.*” This provision predicates the basic legal foundation for academic freedom in the Philippines. The University of Mindanao, a private, non-sectarian higher education institution, respects, adheres, adopts, protects, and promotes academic freedom in all its programs, campuses, and branches, and subject to its internal rules and regulations without infringing on the Constitutional tenet.

The university strongly advocates academic freedom that is tempered with academic responsibility as ensured by various edicts providing for limitations and obligations of institutions and individuals. Thus, the university forms and molds teachers and students who are free and empowered, but who are also responsible and accountable. Academic freedom is therefore an amalgamation and manifestation of the university’s core values of excellence, integrity and honesty, innovation, and teamwork. Academic freedom is guided and cultivated in imbibing and exercising these core values.

Academic freedom basically manifests in academic freedom of the school, academic freedom of the teachers, and academic freedom of the students.

Academic freedom of the school. The University of Mindanao has an established set of internal rules and regulations in the operations of academic and academic support programs, as guided by public policy, most especially by the Commission on Higher Education (CHED), Department of Education (DepED), Technical Education & Skills Development Authority (TESDA), among others. As a private corporation, it is also properly guided by the Securities & Exchange Commission (SEC), Bureau of Internal Revenue (BIR), Department of Labor & Employment (DOLE), and other agencies pertinent to the operations of private organizations. The university is also ISO-certified, ensuring that its internal rules and regulations, consolidated in a Quality Management System, have strong internal controls in accordance with global standards. The academic freedom of the university derives from its unbridled freedom to offer innovative or in-demand academic programs; close underperforming academic programs; develop instructional curricula; craft expected learning outcomes in various levels for all academic programs; establish assessment systems; determine appropriate modalities of delivery; determine codes of conduct for all its teachers, employees, and students; impose disciplinary measures for breach of conduct; and design regulations to ensure the welfare and safety of all the stakeholders in the university.

Academic freedom of the teachers. The teachers are the most essential workforce frontliners in the delivery of academic programs. They enjoy unbridled academic freedom in their teaching strategies at the classroom or lesson level as guided by their syllabus coverage as mandated by the university; choose the content of their lessons with the aim of attaining the course objectives and expected learning outcomes; participate in planning and direction-setting of the university; sit in various councils and committees for representation; avail of professional development programs; redress grievances in cases of complaints; and resign from the university as part of personal preference.

Academic freedom of the students. The students are the primary customers of the university as they serve as the lifeblood for the existence and sustainability of the school. In enjoying their academic freedom, the students have the unbridled freedom to choose the course or degree program where they qualify; choose their class schedules as made available and

properly advised by the school; avail of academic support programs and student support services; join legitimate student clubs and organizations and enjoy the benefits thereof; and join co-curricular and extra-curricular activities for personal and professional growth.

Generally, in the exercise of their academic freedom, teachers, employees, and students in the university have the freedom of choice, freedom of speech, freedom of movement, freedom of conduct, freedom of assembly, freedom of religion, freedom of political and religious views and preferences, personal freedom (autonomy to make choices, including lifestyle and relationships); freedom from fear of reprisal, intimidation, insecurity, persecution, and violence.

Academic responsibility demands moderation and restraint of excessive or abusive academic freedom for the effective, efficient, fair, just, and sustainable operations of the university. As the teachers, employees, and students enjoy their unbridled freedoms, they are all expected to be responsible and accountable of these freedoms. Academic responsibility creates the environment that safeguards proper conduct.

Specifically, academic responsibility mandates that academic freedoms do not damage the reputation and standards of the university (defamation and libel); that do not harm all the teachers, employees, and students in the university (bullying, harassment, hazing); that do not violate stringent academic standards (violation of instructional and assessment guidelines) and operational standards (violation of OPMs); that do not risk program sustainability (not paying duties and fees on time); that do not breach codes of conduct as provided in the faculty manual, employee manual, and student handbook (deviance); and that do not destroy the university's property, facilities, and equipment (vandalism), among others.

Any aggrieved or offended party can avail of existing complaints and feedback mechanisms as redress for a breach of academic freedom and academic responsibility.

Signed:

(Sgd) GUILLERMO P. TORRES, JR.
University President